

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 27, 2026 TIME: 8:30 A.M.

three options: an agreement to comply, a representation of inability to comply, or an objection. (See Code of Civ. Proc., § 2031.210, subd. (a).)

Betty 41st, LLC contends that the RTC's responses do not conform to Code of Civil Procedure sections 2031.210 - 2031.230. Betty 41st, LLC¹ seeks mandatory monetary sanctions as well as issue sanctions and for the court to rule on this motion despite the statutory discovery motion cut-off because of the impending trial date.

Here, RTC agreed to comply after raising objections. However, it never provided a statement of compliance -- i.e., a statement that RTC (1) is complying and (2) that the documents or things demanded are in the responding party's possession, custody or control (except as objections may apply). If RTC cannot comply, it is required to state that and indicate that a diligent and reasonable inquiry was made to locate the item demanded and the reason(s) why compliance is not an option. (Code of Civ. Proc. § 2031.230.)

RTC is to serve a statement of compliance in accordance with the above statutory requirements. The court declines to impose issue and monetary sanctions at this time.

No. 26CV00633

SC LABORATORIES CALIFORNIA, LLC v. SC BLOOM NETWORK, INC.

DEFENDANT SC BLOOM'S MOTION TO SET ASIDE DEFAULT

The motion is denied; defendant did not establish mistake, inadvertence, or excusable neglect.

I. BACKGROUND AND MOTION

Defendant SC Bloom Network, Inc. ("defendant" or "SC Bloom") brings this motion to set aside its default pursuant to Code of Civil Procedure section 473, subdivision (b) – mistake, inadvertence, or excusable neglect.

- February 23, 2026, plaintiff ("SC Labs") filed this case, alleging breach of contract and common counts, seeking damages in the amount of \$87,102.07.
- February 26, 2026, defendant was served with the complaint via substituted service. The documents were left with a person at the business at least 18 years of age and then the complaint was mailed to 300 Pioneer Street, Santa Cruz.
- April 17, 2026, default was entered against SC Bloom.
- June 24, 2026, the Court denied SC Bloom's ex parte application to set aside its default.

LAW AND MOTION TENTATIVE RULINGS

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- August 5, 2026, SC Bloom filed this this motion to set aside default and for leave to file a compulsory cross-complaint.

The motion is accompanied by a declaration from defendant's counsel as well as from William Sump, defendant's CEO. Mr. Sump asserts the initially believed service may have been defective and from February 24-26, 2026 he was emailing with SC Labs, requesting reconciliation of invoices and related information to support its claim of the amount owed. Mr. Sump contends he was actively communicating with SC Labs, and no one warned him that SC Bloom's default was going to be taken. (Decl. of Sump at ¶ 8.)

In opposition, plaintiff asserts that "the timeline in this matter directly controverts Defendant's claims of diligence. Defendant acted unreasonably by repeatedly ignoring the Complaint, the Summons, and the two request for entry of default that were mailed to Defendant." (Opp. at p. 2.) Plaintiff states that Mr. Sump is an experienced litigant who filed a motion to set aside a default in 2022 in another matter in this court. Plaintiff argues that defendant was not in "extensive email correspondence" with him – only four emails on February 24 and 26, 2026 with no discussion of the litigation. (Opp. at p. 8-9.) Plaintiff emphasizes that SC Bloom has been involved in at least 10 litigation matters in Santa Cruz and Santa Clara counties, not including this matter, and two of the cases involved defaults, and so SC Bloom cannot argue it was ignorant of defaults and the potential impact of a default judgment. (Opp at p. 11.)

II. LEGAL STANDARDS AND DISCUSSION

The moving party bears the burden of proving they are entitled to relief under section Code of Civil Procedure section 473(b). The court is empowered to relieve a party "upon any terms as may be just ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code of Civ. Proc. § 473, subd. (b).) Section 473(b) provides the court with discretion to grant relief based upon a showing of "mistake, inadvertence, surprise, or excusable neglect." The party moving for relief must show specific facts demonstrating that one of these conditions was met. (*Hopkins & Carley v. Gens* (2011) 200 Cal.App.4th 981, 989.)

SC Bloom seeks relief based upon excusable neglect, citing its unrepresented status while seeking counsel, "in combination with its ongoing good-faith efforts to obtain documentation of the asserted debt, SC Labs' refusal to provide such documentation despite SC Bloom's reasonable requests, and good-faith efforts to negotiate settlement" (Mtn. at p. 7.)

"To entitle [a party] to relief **the acts which brought about the default** must have been the acts of a reasonably prudent person under the same circumstances." (*Jackson v. Bank of Am.*

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(1983) 141 Cal.App.3d 55, 58.) (Emphasis added.) SC Bloom does not assert it was unaware of the lawsuit; Mr. Sump's declaration shows he was aware of the summons and complaint on February 26, 2026. (Decl. of Sump at ex. A.) SC Bloom has not provided any evidence that default was taken because of illness or inability to understand the summons and complaint. SC Bloom argues that its status as a self-represented litigant seeking legal representation should be factored into the Court's decision to grant relief. "During this time period I engaged in written and telephone correspondence with a law firm that I spoke with about representing SC Bloom in this matter. The firm informed me that one of the attorneys representing SC Labs had previously been an employee of theirs. This, among other facts, gave me concerns about retaining that firm. The firm subsequently notified me on April 28, 2026 that they could not represent me." (Decl. of Sump at ¶ 10.)

Proceeding in litigation without counsel is not excusable neglect. (*Burnete v. La Cases Dana Apartments* (2007) 148 Cal.App.4th 1262, 1264.) "[W]hen a litigant accepts the risks of proceeding without counsel, he or she is stuck with the outcome, and has no greater opportunity to cast off an unfavorable judgment than he or she would if represented by counsel." (*Hopkins & Carley v. Gens* (2011) 200 Cal.App.4th 1401, 1413.)

Further, Mr. Sump does not allege he asked for an extension to respond to the complaint on behalf of SC Bloom while the parties discussed settlement. Mr. Sump contends that part of the reason for the failure to respond to the complaint was because SC Bloom did not concede the amount plaintiff's claim it owes and was seeking to "obtain from SC Labs the documentation necessary to verify the amounts they claim SC Bloom owes and while I was engaged in good-faith attempts to negotiate a resolution." (Decl. of Sump at ¶ 8.) Negotiating settlement and/or disputing the amounts owed are not reasonable excuses for failing to respond to the complaint.

Defendant relies upon *Ebersol v. Cowan* (1983) 35 Cal.3d 427 which involved relief from timely filing a government claim. The facts of *Ebersol* are quite different than the ones before this Court. The plaintiff in *Ebersol* went to an attorney the day she was injured and continued to seek legal advice and assistance despite being turned down by the first attorney and spoke with nine attorneys who told her she did not have a claim. (*Ebersol, supra*, 35 Cal.3d at p. 437.) Additionally, the California Supreme Court noted that the plaintiff was in and out of the hospital because of the hand injury she had sustained. Finally, *Ebersol* involved the failure to file a timely government claim, which creates an additional layer of legal complexity that a layperson may not have reasonably have known. Mr. Sump, who has been involved in a significant amount of litigation in the past, knew of this suit, spoke with one attorney who declined to take his case, and did not request an extension to respond to the complaint. The motion is denied.

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PLAINTIFF'S REQUEST FOR JUDICIAL NOTICE

1a-1d: The Court declines to take notice of these documents which are already part of the file in this case (case no. 26CV00633).

2a-2g: Documents in *KC DBWI, LLC v. SC Bloom Network, Inc.* (Superior Court of California, County of Santa Cruz case no. 22CV01122): Granted.

3a-3b: Documents in *Cavalry SPV I, LLC As Assignee of Citibank, N.A. v. William Sump* (Superior Court of California, County of Santa Cruz case no. 23CV01434): Granted.

4a-4b: Documents in *William Sump, et al. v. Nathaniel Ready, et al* (Superior Court of California, County of Santa Cruz case no. 18CV03384): Granted.

5a-5b: Documents in *Bay Federal Credit Union v. William Sump, II* (Superior Court of California, County of Santa Cruz case no. 20CV00211): Granted.

6a-6b: Documents in *William Sump et al v. Nathaniel Ready et al* (Superior Court of California, County of Santa Clara case no. 20CV366437): Granted.

7a-7c: Documents in *SC Bloom Network, Inc. v. Justin Hudak* (Superior Court of California, County off Santa Cruz case no. 22CV01441): Granted.

8a-8b: Documents in *William Sump v. Benajmin Chapin* (Superior Court of California, County of Santa Cruz case no. 23CV00443): Granted.

9a-9c: Documents in *Seven Zero Seven LLC v. LSC Bloom Network, Inc.* (Superior Court of California, County of Santa Clara case no. 24CV432846): Granted.

10a-10b: Documents in *SC Bloom Network, Inc. v. Old Republic Title* (Superior Court of California, County of Santa Cruz case no. 25CV010890): Granted.

11a-11b: Documents in *Jeanne Carhart v. SC Bloom Network, Inc.* (Superior Court of California, County of Santa Cruz case no. 26CV02325): Granted.

No. 26CV01339

FERGUSON v. WALGREEN CO.

DEFENDANT'S DEMURRER

The demurrer is overruled.